

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/09/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01036
CASE NAME: DAVID HADERER VS. MICHAEL HADERER
***HEARING ON MOTION IN RE: ORDER CONTINUING TRIAL DATE**
FILED BY: HADERER, MICHAEL
TENTATIVE RULING:

The March 9, 2026 hearing is VACATED per the Court's Order entered March 6, 2026.

2. 9:00 AM CASE NUMBER: C23-00358
CASE NAME: RAY SY VS. RODNEY DOTSON
***HEARING ON MOTION IN RE: FOR PROTECTIVE ORDER**
FILED BY: SEVILLA, GIN IVY
TENTATIVE RULING:

Defendant Gin Ivy Sevilla (“Defendant”) filed a Motion for Protective Order on October 22, 2025 (the “Motion for Protective Order”). The Motion for Protective Order was set for hearing on March 9, 2026. Notice of the motion was duly given. The motion is opposed.

Background

The Motion for Protective Order sought to postpone Defendant’s “deposition and the scheduled mediation currently set for October 20, 2025.” Motion for Protective Order, p. 1. This was stated to be “due to ongoing mental health and anxiety issues that currently impair her ability to participate meaningfully in the proceedings at this time.”

Opposition papers were filed on February 24, 2026, including a Request for Judicial Notice. The Request for Judicial Notice is DENIED because the truth of substantive matters contained in a filed declaration are not subject to judicial notice. The Court may, in its discretion, take judicial notice of court records. Evid. Code, § 452(d); *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145. While courts are free to take judicial notice of the existence of each document in a court file, they may not take judicial notice of the truth of facts in filed pleadings such as declarations or other documents which are reasonably subject to dispute and therefore require formal proof. *Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; see generally, Simmons, *California Evidence Manual* (2026 Edition) § 7:12. The Court, however, may simply consider the referenced document as a filed declaration in this case. The Court may consider filed declarations as evidence in connection with law and motion proceedings. See Weil & Brown, *et al., Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”), § 9:46.

A reply and related papers were filed on February 27, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. Code Civ. Proc. § 2025.420. Any such motion shall be accompanied by a meet and confer declaration under Section 2016.040. *Id.* The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. *Id.* at § 2025.420(b).

The moving party makes reference to receiving a notice from the opposing party that “my deposition and mediation are set for October 20, 2025.” See Declaration of Gin Ivy Sevilla filed October 22, 2025, ¶13.

It is not clear to the Court how or why a deposition and mediation would set for the same date. No copy of the referenced notice was attached. The Opposition attaches the notice setting subject deposition for October 20, 2025. See Declaration of Kenneth R. Van Vleck filed February 24, 2026 (“Van Vleck Decl.”), **Exhibit 3**.

In any event, the date has passed. The period over which Defendant anticipated to have an issue with moving forward with the proceedings has also passed. Defendant only sought to continue the proceedings to “early January 2026.”

Accordingly, the relief sought is moot. For that reason, the motion is denied. Even if not moot, the Court would deny the motion for the further reasons discussed below.

Notwithstanding the determination that the relief sought is moot, the Court must determine whether sanctions are appropriate as against Defendant. See Code Civ. Proc. § 2025.420(h) (“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

First, the Court has considered and does not find that there was substantial justification for the motion in the first place. The vague and unsupported grounds stated in Defendant’s supporting declaration did not demonstrate good cause, especially given the history of plaintiffs’ efforts to confer to accommodate Defendant’s schedule. See Van Vleck Decl., ¶12 *et seq.*

Second, Defendant advised of her motion and proceeded with the motion without engaging in a good faith effort to meet and confer, as she was required to do. *Id.*

Defendant’s failure to engage in a good faith effort to meet and confer constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. The Court finds that Defendant did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust. The Court has considered, in mitigation, Defendant’s self-represented status at the time.

The Reply asserts that “Ms. Sevilla had more than substantial justification: a pending criminal prosecution on the same operative facts...” Reply, p. 7. Defendant’s moving papers did not premise the motion on any pending criminal prosecution. Defendant’s moving papers, including the supporting declaration, mention nothing about such an issue. Nor did Defendant meet and confer with the opposing party on the basis of such a contention.

The Court declines to consider the new evidence contained in the late tendered further declaration by Defendant filed February 27, 2026. See Weil & Brown, §§ 9:449 and 106.1.

The Court does not reach the counter request to order Defendant to appear for deposition. If the deposition is re-noticed and Defendant fails to appear, appropriate relief may be sought at that time. Or, if Plaintiffs believe there are grounds to do so, Plaintiffs may file and notice a motion to compel

attendance at deposition.

The Court also notes that counsel has since substituted in for Defendant and the Court encourages the parties to meet and confer regarding the scheduling of the deposition without further delay. The Court will further address the status of the proceedings at the scheduled March 20, 2026 hearing date.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is DENIED.
2. Defendant shall pay monetary sanctions to plaintiffs in the amount of **\$1,200.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by plaintiffs as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the declarations of the parties and their attorneys. **The Monetary Sanctions shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.**
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a demurrer by defendant Allan Mendieta to plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. Also set for hearing concurrently is a motion to strike the punitive damages allegations and prayer for punitive damages. For the reasons set forth below, the hearing on the demurrer and motion to strike shall be **CONTINUED to 9:00 a.m. on April 13, 2026** for the parties to conduct the statutory meet and confer, as set forth below. The parties shall conduct a Code-compliant meet and confer **by March 23, 2026**, and counsel for defendant shall file a supplemental declaration **by April 1, 2026** attesting to the completion of the meet and confer.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the filing deadline before filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike. (Code Civ. Proc. § 435.5(a).)

In support of the demurrer and motion to strike, defendant filed a declaration of counsel, Mr. Leary, which does not attest that the parties met and conferred in any manner prior to defendant filing the demurrer and motion to strike. The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).

4. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C25-00012
CASE NAME: SURGRIFF PROPERTIES LLC VS. CLARITA GRIFFIN
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,**
SPECIAL INTERROGATORIES, REQUESTS FOR PRODUCTION, AND REQUESTS FOR ADMISSION, SET
ONE
FILED BY:
TENTATIVE RULING:

On July 21, 2025, plaintiff Surgriff Properties LLC ("Plaintiff") filed a motion to compel further responses to certain discovery requests propounded by Plaintiff to defendant Clarita Griffin ("Defendant") (collectively, the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on November 3, 2025.

Background

The Motion to Compel Further Responses relates to four separate discovery requests. Plaintiff served Defendant with (1) a Form Interrogatories, Set One, (2) Special Interrogatories, Set One, (3) Requests for Production, Set One, and (4) Requests for Admission, Set One. See Declaration of Jason Horst filed July 21, 2025 ("Horst Decl."), ¶13 and **Exhibits 1-4** thereto. Collectively, these requests are referred to herein as the "Discovery Requests."

No responses were received before the deadline. Horst Decl., ¶15. Despite meet and confer efforts, no responses were received before Plaintiff filed an earlier motion to compel on May 15, 2025.

Responses were finally served on June 3, 2025. Horst Decl., ¶15.

The earlier motion to compel was denied as moot given that responses had been served in the interim. See Order entered September 2, 2025.

However, this motion remained pending based on the contention that Defendant's responses were inadequate.

At the hearing on the Motion to Compel Further Responses on November 4, 2025,* the Court ordered the parties to meet and confer and file a Joint Statement no longer than 10 pages by December 1, 2025 (the "Joint Statement") and continued the hearing to December 15, 2026.

At the Case Management Conference (CMC) on November 19, 2025, the Motion to Compel Further Responses was continued from December 15, 2025 to March 9, 2026. The Court was informed that the parties had made progress towards settlement and the parties agreed to continue the discovery motion. See Minute Order dated November 19, 2026.

A Reply was filed on March 2, 2026. Among other things, plaintiff observes that no settlement has yet

been reached.

*This date was specially set by the Court's published tentative ruling.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

While the Reply brief describes Plaintiff's initial efforts to meet and confer (see Reply, pp. 6-7), there has been no showing that the parties complied with the Court's earlier order to further meet and confer and prepare the Joint Statement as ordered on November 4, 2025.

Accordingly, the Court continues the matter and orders the parties to complete such further meet and confer efforts and to file a Joint Statement identifying each of the discovery items that remain in dispute and the unresolved issues as to the items.

In connection with such further meet and confer, the Court admonishes Defendant as follows:

- 1. Waiver of Objections.** The Court finds that any objections to such Discovery Requests have been waived. See Code Civ. Proc. §§ 2030.290, 2031.300 and 2033.280. Any supplemental responses should be without objections.
- 2. Lack of Code Compliant Responses.** The responses to the subject document production requests are not code compliant as written. Defendant is admonished to review the provisions of Code of Civil Procedure sections 2031.210 through 2031.230. See Code Civ. Proc. §§ 2031.210-2031.230.

Sanctions

The parties are further ordered to meet and confer regarding payment of monetary sanctions for the costs of the present motion.

While the Court has not made a final determination regarding sanctions and will consider any mitigating circumstance in rendering a final decision, including whether compliant supplemental responses are made hereafter, the Court makes the following observations and findings:

- 1. Initial Failure to Timely Respond.** Defendant's failure to respond to the Discovery Requests even after the deadline to do so had passed and demands for responses were made constituted failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure

section 2023.010(d). See Horst Decl., ¶6 *et seq.*

2. Failure to Meet and Confer in Good Faith. Defendant's failure to respond to meet and confer efforts regarding the Discovery Requests after the late responses were finally served constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Horst Decl., ¶¶10-13.

3. Misuse of Discovery Process. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is CONTINUED to **May 4, 2026, 9:00 am in Department 34.**
2. The Joint Statement shall be filed no later than **April 20, 2026.**
3. If the case otherwise resolves, the Joint Statement may simply indicate that the motion is withdrawn in light of a final settlement.

6. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: AXIS CONSTRUCTION INC
TENTATIVE RULING:

See Line 8.

7. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: AXIS CONSTRUCTION INC
TENTATIVE RULING:

See Line 8.

8. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: NEW PIPES INC

TENTATIVE RULING:

Before the Court is Defendant New Pipes, Inc.’s Demurrer to First Amended Complaint.

Procedural Background

This matter relates to alleged improper repairs and construction impacting real property located within the Vintner Condominium Association (the “Property”). (¶ 7.) The actions at issue appear to have started in 2019 and continue to present. (¶¶ 21-28.) The FAC does not include an address for the Property or legal description thereof.

Plaintiffs filed the initial Complaint on March 13, 2025. The initial Complaint included Praveen Gupta and Wisdom Tree Properties, LLC as plaintiffs. Defendant Vintner Condominium Homeowners’ Association (“Vintner”) filed a demurrer on April 18, 2025. A basis for the demurrer was that the Complaint was uncertain as to who the proper plaintiff was and that if Wisdom Tree was properly a plaintiff that Mr. Gupta could not represent it given that he is not an attorney.

The Court sustained the demurrer finding that the Complaint was uncertain as to what plaintiff owned the Property during the relevant time and the basis for the claims for damages. The Court noted in its Order: “If the amended complaint includes Wisdom Tree as a plaintiff, it must be filed by a licensed California attorney. Also, the amended complaint should be more explicit as to what allegations and causes of action are being plead as to each Plaintiff.”

Plaintiffs filed the operative First Amended Complaint on September 15, 2025. The FAC now indicates that the Plaintiffs are Praveen Gupta, individually, and as Trustee of Praveen and Madhu Gupta Living Trust (the “Trust”). Relevant to the ownership of the Property, the FAC states:

From on or about 2012 through on or about 2018, Praveen Gupta and Madhu Gupta held record title to the Property. From on or about 2018 through on or about early 2025, Wisdom Tree Properties, LLC—a California limited liability company wholly owned by Praveen Gupta and Madhu Gupta—held record title. In or about early 2025, title was lawfully transferred from Wisdom Tree Properties, LLC to the Praveen and Madhu Gupta Living Trust, which is the current sole owner of the Property. (¶ 16.)

The FAC alleges nine causes of action, five of which are asserted against Defendant New Pipes: (a) trespass (2nd CoA); (b) private nuisance (3rd CoA); (c) negligence (4th CoA); (d) declaratory relief (6th CoA); and (e) negligent undertaking (9th CoA). New Pipes demurs to each of the causes of action, as well as to the FAC as a whole due to Mr. Gupta’s inability to represent the Trust.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and

with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Timeliness of First Amended Complaint

New Pipe argues that the FAC should be stricken as it was untimely filed. The Court heard argument on Vintner HOA’s demurrer to the original Complaint on August 25, 2025. After hearing argument, the Court affirmed its tentative sustaining the demurrer with leave to amend. The Order indicated that Mr. Gupta was to file the amended complaint “within 21 days of entry of this Order.”

A prevailing party must prepare and submit an order after hearing which is then signed by the Court and entered. (Cal. R. Ct. 3.1312.) Also, when “a motion is granted or denied, unless the court otherwise orders, notice of the court’s decision or other shall be given by the prevailing party to all other parties or their attorneys ... unless notice is waived by all parties in open court and is entered in the minutes.” (Code Civ. Proc. § 1019.5(a).)

The Court’s docket does not show that Vintner’s counsel submitted an order after hearing for the Court’s signature and entry. Even if the minute order confirming the tentative could be considered the “Order” of the Court, there is no indication Vintner provided notice of entry of the Order to any of the parties. Nor is there any minute order indicating that the parties waived notice in open court. As such, no final Order has been entered regarding that ruling and the clock never started for when to file the FAC.

Even if one presumes that the clock started on August 25, the FAC was timely filed. Based on that date, the FAC would be due on or before September 15, 2026. New Pipe claims that Mr. Gupta attempted to file the FAC on that date, but it was rejected by the Court. The Court’ docket, however, as confirmed by the version submitted by New Pipe, shows that the FAC was filed on that date:

It does appear that a substitution of attorney submission was rejected on that date, but the FAC was indeed filed on September 15, 2025. The header on the Court’s version of the FAC also clearly indicates that it was filed on September 15, 2025:

New Pipe, however, submits a version of the FAC which differs from the official Court version. Specifically, the header which shows when the document was filed appears altered:

The footer also shows different information displaying an impossible date upon which it was

processed:

Court's official version:

The Court does not know where New Pipe's counsel obtained their version of the FAC, but it does not appear to be from the Court's files. Counsel are encouraged to only obtain the documents from the Court and not rely on other services for providing those documents.

The FAC was timely filed.

Standing

"Standing is a threshold issue necessary to maintain a cause of action, and the burden to allege and establish standing lies with the plaintiff." (*People ex rel. Becerra v. Superior Court* (2018) 29 Cal.App.5th 486, 495.) The issue of "lack of standing may be raised by demurrer." (*Martin v. Bridgeport Community Assn., Inc.* (2009) 173 Cal.App.4th 1024, 1031 citations omitted.)

As outlined above, the Trust is alleged to be the current owner of the Property and has been since "early 2025." (¶ 16.) Prior to that, Wisdom Tree owned the Property from about 2018 through early 2025. (*Ibid.*) Plaintiff Praveen Gupta is alleged to have owned the Property, along with Madhu Gupta, from about 2012 to 2018. The actions at issue in this matter are alleged to have occurred beginning in 2019. As such, the time when Mr. and Mrs. Gupta held title to the Property are not at issue.

Code of Civil Procedure section 367 establishes the rule that "[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." "A real party in interest is one who has 'an actual and substantial interest in the subject matter of the action and who would be benefited or injured by the judgment in the action.'" (*Martin*, supra, 173 Cal.App.4th at 1031.) As the current owner of the Property, the Trust would appear to have standing to bring this litigation.

As noted by New Pipes, however, a trustee who is not an attorney cannot represent a trust in litigation outside of the probate context. The Court in *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545 tackled this issue of first impression and adopted the holding of the Supreme Court of Nebraska which held:

It is true that, as a general rule, a trust is not a legal personality, and the trustee is the proper person to sue or be sued on behalf of such trust. [Citations.] However ... a trustee's duties in connection with his or her office do not include the right to present argument [in propria persona] in courts of the state, because in this capacity such trustee would be representing *interests of others* and would therefore be engaged in the unauthorized practice of law. (*Id.* at 548 quoting *Back Acres Pure Trust v. Fahnlander* (1989) 233 Neb. 28, 29.)

The *Ziegler* court summarized: "A nonattorney trustee who represents the trust in court is representing and affecting the interests of the beneficiary and is thus engaged in the unauthorized practice of law." (*Id.* at 549 citing Bus. & Prof. Code § 6125.)

While there might be an applicable exception to this rule if Mr. Gupta was the sole trust settlor and

beneficiary under the trust, but he does not allege as much and it appears from the nature of the described trust that he is not. (See *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1524 (a trustee litigating on behalf of a trust in which he as the settlor has designated himself the sole beneficiary is not representing the interests of others.) In his opposition, Mr. Gupta states that, despite the caption of the FAC, he “proceeds in this action in his individual capacity, not as a trustee.” (Opp. at 14:9.) He asserts that the Property was transferred from the Trust to him on January 28, 2026. (*Id.* at 14:10-11; Gupta Decl. ¶ 2.) Mr. Gupta contends that he filed a motion to change caption to ‘formally remove the trustee designation’ and that the ‘trust-capacity label in the caption is a technical issue, not a substantive defect in the claims.” (*Id.* at 14:14-16.)

There are several problems with Mr. Gupta’s arguments. First, none of the above is contained in the FAC. Nor does Mr. Gupta seek judicial notice of any information that could establish it. On a demurrer, the Court is limited to the allegations of the complaint and matters that are subject of judicial notice. (Code Civ. Proc. § 430.40; see *Blank*, supra, 39 Cal.3d at 318.)

Second, Mr. Gupta’s claim that the Trust is not a party is undermined by the allegations of the FAC which indicate that it is the owner of the Property. Mr. Gupta was not the owner of the Property during the relevant time. As such, if the Trust is not a party, Mr. Gupta has not alleged in the FAC any basis for his standing to pursue the claims set forth therein. While he contends that all claims were assigned to him, there are no allegations in the FAC indicating this is the case. The FAC alleges that the Trust has owned the Property since early 2025. Prior to that, Wisdom Tree owned the Property – with regards to the times at issue in this matter. Mr. Gupta is not alleged to have any interest in the Property during the times relevant to this matter. Thus, per the allegations of the Complaint, he has no standing to bring this action. He also cannot represent the Trust as he is not an attorney.

Other Challenges to the FAC

In addition to the demurrer, New Pipe also filed a motion to strike portions of the FAC to be heard concurrently with the demurrer. Defendant Axis filed a demurrer and motion to strike directed toward the FAC on October 15, 2025. Defendant Vintner filed a demurrer and motion to strike on October 22, 2025. The Vintner and Axis papers are set for hearing concurrently with New Pipe’s demurrer.

Given the Court’s ruling on New Pipe’s demurrer finding that Plaintiff does not have standing to bring the claims asserted in the FAC, the other parties’ demurrers and motions to strike are moot and the Court does not address the arguments raised therein at this time.

Conclusion

New Pipe’s demurrer is **SUSTAINED, with leave to amend**, as to all causes of action based on the lack of standing. As there is no proper Plaintiff currently before the Court, the Court will not rule on the other grounds raised by New Pipe at this time. Mr. Gupta shall file his amended complaint within ten (10) days of notice of entry of the Order on this Demurrer..

9. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE AND DISMISS 1ST AMENDED COMPLAINT
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

The Court notes that Defendant Vintner raises similar standing arguments as those set forth by Defendant New Pipes. Defendant Vintner's demurrer is **SUSTAINED** for the same reasons as those set forth in the ruling on New Pipes' demurrer. See line 8.

11. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT
FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

See Line 8.

12. 9:00 AM CASE NUMBER: C25-01210
CASE NAME: SHARON DE EDWARDS MD VS. NANDI ROBISON
*HEARING ON MOTION IN RE: MOTION TO DISMISS CONTINUED FROM 2/2/26
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Nandi Robison's Motion to Dismiss.

Factual Allegations and Procedural Background

This matter pertains to allegations that Plaintiff provided medical services to Defendant for which Defendant failed to make payment. It is alleged that Defendant initially used a credit card to charge \$451.91 for a medical consultation. Defendant thereafter reported the charge to her credit card company as a fraudulent charge and received a refund. After calling the credit card company, Defendant went to Plaintiff's office and indicated that her health plan was sending payment for the services and requested a refund of the \$451.91. Plaintiff issued Defendant a check for \$476.91 (which

included payment of Defendant's copay of \$25), which Defendant thereafter cashed.

Based on the above, Plaintiff filed her complaint on April 29, 2025, alleging three causes of action: (1) fraud; (2) false light; and (3) defamation. Plaintiff's prayer seeks \$30,000 in compensatory damages as well as \$10,000 in punitive damages.

Defendant filed her answer on June 11, 2025. Defendant then filed this motion to dismiss on September 22, 2025. On February 26, the Court issued its tentative ruling continuing the hearing to March 9 to allow the parties time to properly meet and confer as required by Code of Civil Procedure section 439. In that order, the Court made the following observation:

"The Court has concerns that this matter should not be classified as an unlimited civil matter and/or should be resolved through other means. The Court will address those concerns after it hears from the Parties regarding their meet and confer."

Plaintiff's counsel filed the requested declaration on February 13 indicating that the parties met and conferred "but could not come to an agreement to resolution, and therefore the Court should proceed with ruling on the motion for judgment on the pleadings."

Applicable Law

In all unlimited cases where the amount in controversy does not exceed \$50,000, the case "must be arbitrated." (Cal. R. Ct. 3.811(a); Code Civ. Proc. § 1411.11.) "California Code of Civil Procedure section 1141.10 et seq. allows the Court to require all cases where the amount in dispute is \$50,000 or less to be submitted to either judicial arbitration or to mediation if the judge finds it to be appropriate in a particular case." (Local Rule 3.202(a).)

The Code requires that the determination of the amount in controversy be made at a case management conference "or based upon review of the written submissions of the parties," and "all named parties have appeared or defaulted," (Code Civ. Proc. § 1141.16(a).) The present matter includes a single plaintiff and a single defendant, both of which have appeared.

The Court has reviewed the Complaint, Answer, and Case Management Conference statements submitted by the parties. The Court has also reviewed the parties' submissions related to the motion to dismiss.

The main issue in the Complaint relates to an alleged disputed credit card charge in the amount of \$451.91. Plaintiff contends that Defendant reported the charge as a 'fraudulent' charge and requested a chargeback. Based on these allegations, Plaintiff asserts three causes of action: (1) fraud; (2) false light; and (3) defamation. She prays for compensatory damages of \$30,000 as well as punitive damages. No request for equitable relief is asserted.

Defendant denies that she reported the charge as fraudulent, but instead she indicates that the chargeback was the result of miscommunications between her insurance provider, herself, and Plaintiff's office.

The Court finds that the amount in controversy falls below the \$50,000 threshold required to send this matter to judicial arbitration. Initially, the Court notes that the Plaintiff seeks \$30,000 in compensatory damages – which is below the threshold. Even if the Court considers the \$10,000 in punitive damages sought by Plaintiff, that full amount sought by the Complaint falls below the \$50,000 threshold. (The Court notes that the request for a specific amount of punitive damages in a

complaint is prohibited – see Civ. Code § 3295(e) [“No claim for exemplary damages shall state an amount or amounts.”])

The Court also finds that Plaintiff’s asserted damages are well above those reasonably available to her based on the allegations in the Complaint. There are no facts supporting such a large request for compensatory damages. Even if a meritless notification of a ‘fraudulent’ charge to a credit card company could be considered fraud or defamation, there is no explanation or reasonable basis for determining that Plaintiff was actually damaged by this procedure or that those damages run into the thousands much less tens of thousands of dollars.

The Court also notes that both parties’ CMC statements indicate that they are amenable to ADR of some kind.

Conclusion

The Court finds that this matter is subject to mandatory judicial arbitration in accordance with Code of Civil Procedure section 1411.10 et seq. As such, any determination as to the merits of the case must be decided by the arbitrator. Accordingly, the motion to dismiss is **DENIED** without prejudice.

The Parties are ordered to contact the Court’s ADR Program Office (adrweb@contracosta.courts.ca.gov) to select an arbitrator for this matter and to proceed with judicial arbitration under the Court’s rules.

13. 9:00 AM CASE NUMBER: C25-01838
CASE NAME: HARLEY CONSTANTIN VS. FOTUALLI FANO
***HEARING ON MOTION IN RE: TO STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: CRIST, FRITSCHI & PATERSON,
TENTATIVE RULING:

Before the Court is Defendants Crist, Fritsch, & Paterson, Inc.’s (“CF&P”) and Fotualli Fano’s (“Ms. Fano”) motion to strike. The motion to strike relates to the Complaint for (1) Negligence (as to procurement of Liberty Mutual policy), (2) Negligence (as to procurement of Gemini policy), (3) Negligent Misrepresentation, (4) Unfair Business Practices, and (5) Declaratory Relief filed by Harley Constantin d/b/a Victor Electric (“Plaintiff” or “Mr. Constantin”).

Defendants, pursuant to California Codes of Civil Procedure §§ 435 and 436, move to strike the following portions of Plaintiff’s complaint in this action: (1) the request for restitution of premiums, (2) the request for injunctive relief, (3) the request for attorney’s fees pursuant to the UCL and California Code of Civil Procedure section 1021.5, and (4) the request for declaratory relief. Defendants contend these remedies are improper as a matter of law because premiums were paid to insurers rather than Defendants, precluding restitution; the complaint alleges no pattern or practice supporting injunctive relief; Plaintiff does not qualify for attorney’s fees under the UCL or California Code of Civil Procedure section 1021.5; and Plaintiff has not alleged sufficient facts to establish an actual present controversy warranting declaratory relief.

Plaintiff opposes Defendants’ motion to strike, arguing that restitution, injunctive relief, and attorney’s fees are all properly pled and that striking them at the pleading stage improperly resolves disputed

factual issues; Plaintiff further contends that declaratory relief is appropriate given the ongoing controversy regarding Defendants' duties in procuring insurance and advising of material exclusions.

Defendant's Motion to Strike is **denied in part and granted with leave to amend in part**.

I. Factual Allegations and Background

This suit arises out of a dispute between an independent contractor and his insurance broker.

Harley Constantin ("Mr. Constantin"), who does business as Victor Electric, is a licensed electrical contractor who installs and repairs electrical systems in completed and new residential construction projects. (Complaint ("Compl.") at 7:12-13.) Crist, Fritsch, & Paterson, Inc. ("CF&P") and its agents served as brokers for Victor Electric's commercial general liability ("CGL") insurance for over 25 years. (*Id.* at 7:14-17, fn. 1.) Fotualli Fano ("Ms. Fano") is an agent of CF&P and was Victor Electric's broker during periods relevant to the instant suit. (*Ibid.*)

Plaintiff alleges that CF&P "holds itself out to the public, including through its publicly accessible website (www.cfpinsurance.com) as having specialized expertise in obtaining insurance coverage for licensed contractors..." (Compl. at 5:5-8.) He notes that CF&P on its website includes contractor-specific content related to insurance requirements "including but not limited to, statements of expertise, advice, and warnings..." (*Id.* at 5:9-11.)

A general contractor, K.B. Stone Diamond Corporation, doing business as Diamond Construction ("Stone/Diamond") hired Victor Electric in 2021 to install an electrical system in a new residential construction. (Compl. at 7:19-8:2.) The owners of the property, Robert and Joanne Bradford, subsequently filed suit in Contra Costa County Superior Court in 2023 against Stone/Diamond and others involved in the construction on their property. (*Id.* at 8:3-8.) Plaintiff was served with a cross-complaint in the suit by Stone/Diamond on April 23, 2024. (*Id.* at 8:9-13.)

Plaintiff tendered the defense of the Stone/Diamond cross complaint to Ms. Fano and CF&P, who notified Plaintiff's CGL policy insurer, Liberty Mutual, of the suit. (Compl. at 8:14-17.) On June 5, 2024, Liberty Mutual denied defense of the suit on the grounds that Plaintiff's policy excluded defense for any work on new residential construction. (*Id.* at 8:17-18; 9:1.; Ex. 3)

Plaintiff was unaware of the new residential construction exclusion in his GCL policy. (Compl. at 10:12-13.) Until Plaintiff was served with the Stone/Diamond cross-complaint, he had never before been sued for his work as a licensed electrical contractor. (*Id.* at 9:20-22.)

Plaintiff alleges that CF&P and Ms. Fano knew or should have known that Plaintiff worked on new residential construction and failed to warn him that his policy included the exclusion. (Compl. at 9:23-24.) He alleges that given their knowledge of his work and their expertise, Defendants had a duty to advise him about important exclusions and risks in his policy, yet year after year they renewed his policy and failed to advise him of the gap in his coverage. (*Id.* at 10:3-9, 11-13; 11:6-7.)

Plaintiff regularly contacted CF&P requesting that they provide "Additional Insured" declarations for his

work on new residential construction, as is often required by general contractors to assure them the subcontractor is adequately insured; CF&P routinely issued these declarations. (Compl. at 10:14-20; 11:1-5; e.g. Ex. 4.)

When Mr. Constantin learned of the new residential construction exclusion in his CGL insurance policy with Liberty Mutual, he immediately requested that Ms. Fano and CF&P acquire him a CGL insurance policy that covered him for his work on new residential construction as well as his prior work on new residential construction (with the exception of the Bradford project). (Compl. at 14:18-21.)

Ms. Fano verbally advised Mr. Constantin that a Gemini policy would include the provisions he required, and, based on these representations, Mr. Constantin agreed to purchase the Gemini policy. (Compl. at 15:3-10, 20.)

Plaintiff now alleges that the Gemini policy also excluded coverage for work on certain new residential custom homes. (Compl. at 15:13-14.) The Gemini policy, attached as Exhibit 5 to Plaintiff's complaint, indicates that the policy does not cover new residential construction, and goes on to indicate that custom homes are the exception to the Gemini policy's exclusion on new residential homes. (Compl. Ex. 5.) The policy defines "custom homes" as "'Single-family Home(s)' ... not part of any planned development of 'Single-family Home(s)' or 'Townhome(s)' or any combination of 'Single-family Home(s)' or 'Townhome(s)'." (*Ibid.*)

Plaintiff alleges that he worked on two new custom homes in planned developments while he was covered under the Gemini policy. (Compl. at 16:1-2.) Plaintiff alleges that he is now possibly left exposed to risk because if he is sued for damages or indemnity, Gemini may deny coverage. (*Id.* at 16:3-6.)

As a result of Defendants' conduct, Plaintiff alleges he was injured by the loss of money or property that he paid out in premiums over 25 years for inadequate insurance coverage, as well as costs and attorney's fees incurred in defending a third-party lawsuit that the insurer refused to defend, potential judgment or settlements amounts, and potential liability exposure for uncovered claims. (Compl. at 20:3-8.) Plaintiff seeks restitution of all money wrongfully obtained by Defendants, disgorgement of all ill-gotten gains, an injunction prohibiting Defendant from engaging in similar conduct with other clients, and attorney's fees for the instant suit as well as for defending against the Bradford action. (*Id.* at 20:12-16.) He also seeks declaratory relief on the basis that an actual controversy now exists between Plaintiff and Defendants as to whether Defendants should be responsible for defending and indemnifying Plaintiff in the Bradford action and/or any other suits that may emerge from Plaintiff's work both before the Gemini policy was in place through the date of its cancellation. (*Id.* at 21:20-24; 22:1-2.)

Plaintiff filed the instant suit on June 26, 2025.

The parties must meet and confer in person, by telephone, or by video conference at least five days before the date a motion to strike must be filed. (Code Civ. Proc., § 435.5.) Meet and confer efforts were adequate under the statute. Defendant's motion to strike was filed October 20, 2025.

II. Legal Standard

The Court may, in its discretion and upon a motion to strike by defendant: (a) strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) “Irrelevant matter,” as the term is used in section 436, means “immaterial allegation.” (Code Civ. Proc., § 431.10(c).) California Code of Civil Procedure section 431.10(b) defines “immaterial allegation” as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

III. Analysis

A. Restitution of Premiums, Injunctive Relief, and Declaratory Relief

Plaintiff’s requests for restitution of premiums, injunctive relief, and declaratory relief are related to the fourth cause of action for Unfair Business Practices under California Business and Professions Code section 17200 (“UCL”), and the fifth cause of action for declaratory relief, respectively. Both of these causes of action were sustained with leave to amend in the demurrer that accompanies the instant motion. Accordingly, as a threshold issue, the motion to strike these items is denied as moot.

B. Attorney’s Fees

Defendants seek to strike Plaintiff’s request for attorney’s fees on two bases. Firstly, Defendants contend that Plaintiff is not entitled to attorney’s fees under the UCL as related to third-party suits like the Bradford action, and/or others that might hypothetically emerge out of work Plaintiff performed while he was allegedly underinsured by the Liberty Mutual and Gemini policies. Secondly, Defendants contend that Plaintiff is not entitled to attorney’s fees in the instant suit under California Code of Civil Procedure section 1021.5 on the grounds that this litigation does not confer a significant benefit on the general public or a large class of persons and is, to the contrary, purely unique to Plaintiff’s personal interests. (Def. MTS at 9:21-22.)

i. Attorney’s Fees Under the UCL

Prevailing plaintiffs in a UCL action are limited to injunctive relief and restitution; they may not receive damages or attorney fees because restitution is the only monetary remedy expressly authorized for violation of the UCL. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179; *Kraus v. Trinity Management Services, Inc.* (2000) 23 Cal.4th 116, 128; Bus. & Prof. Code, § 17203.)

Because attorney’s fees are not a permitted form of relief under the UCL, to the extent that Plaintiff seeks to recover attorney’s fees under the UCL related to defending the underlying Bradford/Stone lawsuit (Compl. at 20:3-7; 21:13-14.), the motion to strike that request is granted with leave to amend.

ii. Attorney's Fees Under California Code of Civil Procedure § 1021.5

Absent an express or implied agreement between the parties or a statute that specifically provides for them, parties are responsible for their own attorney's fees. (Code Civ. Proc., § 1021.) A court may award attorney's fee to a successful party upon motion "in any action which has resulted in the enforcement of an important right affecting the public interest" if:

- (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons,
- (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and
- (c) such fees should not in the interest of justice be paid out of the recovery, if any.

(Code Civ. Proc., § 1021.5.)

"There is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533; see also: *Snatchko v. Westfield LLC*, (2010) 187 Cal. App.4th 469, 497.)

Because there is no requirement that the basis for a fee award be specified in the pleadings, the propriety of any such award under section 1021.5 is a matter to be determined by the Court on motion after judgment, not at the pleading stage. (*Snatchko, supra*, 187 Cal. App.4th at 497.) Accordingly, to the extent that Plaintiff seeks attorney's fees under section 1021.5, the motion to strike is denied.

IV. Conclusion

For the foregoing reasons, Defendants' motion to strike is **DENIED IN PART and GRANTED IN PART**. The motion to strike is denied as moot as to the requests for restitution of premiums, injunctive relief, and declaratory relief; denied as to the request for attorney's fees under California Code of Civil Procedure section 1021.5; and granted as to the request for attorney's fees under the UCL.

14. 9:00 AM CASE NUMBER: C25-01838
CASE NAME: HARLEY CONSTANTIN VS. FOTUALLI FANO
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CRIST, FRITSCHI & PATERSON,
TENTATIVE RULING:

Before the Court is Defendants Crist, Fritsch, & Paterson, Inc.'s ("CF&P") and Fotualli Fano's ("Ms. Fano") demurrer. The demurrer relates to the Complaint for (1) Negligence (as to procurement of Liberty Mutual policy), (2) Negligence (as to procurement of Gemini policy), (3) Negligent Misrepresentation, (4) Unfair Business Practices, and (5) Declaratory Relief filed by Harley Constantin

d/b/a Victor Electric (“Plaintiff,” “Victor Electric,” or “Mr. Constantin”).

Pursuant to California Code of Civil Procedure section 430.10, Defendants demur to Plaintiff’s second cause of action for negligence on the grounds that Plaintiff cannot plead essential elements of negligence; to Plaintiff’s fourth cause of action on the grounds that Plaintiff fails to identify any conduct on the part of Defendants that constitutes an unlawful, unfair or fraudulent business practice; and to Plaintiff’s prayer for declaratory relief on the grounds that Plaintiff provides no proof that Defendants were parties to any agreement.

Plaintiff opposes Defendant’s demurrer to the second cause of action for negligence on the grounds that the complaint adequately pleads duty, breach, and resulting damages; to the fourth cause of action under California Business and Professions Code section 17200 on the grounds that the complaint sufficiently identifies conduct that constitutes an unlawful, unfair and/or fraudulent business practice; and to the claim for declaratory relief on the grounds that the pleadings establish the existence of an actual controversy between the parties.

For the following reasons, Defendant’s demurrer to Plaintiff’s complaint is **overruled as to the second cause of action and sustained with leave to amend as to the fourth and fifth causes of action.**

I. Facts and Procedural Background

This suit arises out of a dispute between an independent contractor and his insurance broker.

Harley Constantin (“Mr. Constantin”), who does business as Victor Electric, is a licensed electrical contractor who installs and repairs electrical systems in completed and new residential construction projects. (Complaint (“Compl.”) at 7:12-13.) Crist, Fritsch, & Paterson, Inc. (“CF&P”) and its agents served as brokers for Victor Electric’s commercial general liability (“CGL”) insurance for over 25 years. (*Id.* at 7:14-17, fn. 1.) Fotualli Fano (“Ms. Fano”) is an agent of CF&P and was Victor Electric’s broker during periods relevant to the instant suit. (*Ibid.*)

Plaintiff alleges that CF&P “holds itself out to the public, including through its publicly accessible website (www.cfpinsurance.com) as having specialized expertise in obtaining insurance coverage for licensed contractors...” (Compl. at 5:5-8.) He notes that CF&P on its website includes contractor-specific content related to insurance requirements “including but not limited to, statements of expertise, advice, and warnings...” (*Id.* at 5:9-11.)

A general contractor, K.B. Stone Diamond Corporation, doing business as Diamond Construction (“Stone/Diamond”) hired Victor Electric in 2021 to install an electrical system in a new residential construction. (Compl. at 7:19-8:2.) The owners of the property, Robert and Joanne Bradford, subsequently filed suit in Contra Costa County Superior Court in 2023 against Stone/Diamond and others involved in the construction on their property. (*Id.* at 8:3-8.) Plaintiff was served with a cross-complaint in the suit by Stone/Diamond on April 23, 2024. (*Id.* at 8:9-13.)

Plaintiff tendered the defense of the Stone/Diamond cross complaint to Ms. Fano and CF&P, who notified Plaintiff’s CGL policy insurer, Liberty Mutual, of the suit. (Compl. at 8:14-17.) On June 5, 2024,

Liberty Mutual denied defense of the suit on the grounds that Plaintiff's policy excluded defense for any work on new residential construction. (*Id.* at 8:17-18; 9:1.; Ex. 3)

Plaintiff alleges he was unaware of the new residential construction exclusion in his GCL policy. (Compl. at 10:12-13.) Until Plaintiff was served with the Stone/Diamond cross-complaint, he alleges that he had never before been sued for his work as a licensed electrical contractor. (*Id.* at 9:20-22.)

Plaintiff alleges that CF&P and Ms. Fano knew or should have known that Plaintiff worked on new residential construction and failed to warn him that his policy had an exclusion for new residential construction. (Compl. at 9:23-24.) He alleges that given their knowledge of his work and their expertise, Defendants had a duty to advise him about important exclusions and risks in his policy, yet, year after year, they renewed his policy and failed to advise him of the gap in his coverage. (*Id.* at 10:3-9, 11-13; 11:6-7.)

Plaintiff regularly contacted CF&P requesting that they provide "Additional Insured" declarations for his work on new residential construction, as is often required by general contractors to assure them the subcontractor is adequately insured; CF&P routinely issued these declarations. (Compl. at 10:14-20; 11:1-5; e.g. Ex. 4.)

When Mr. Constantin learned of the new residential construction exclusion in his CGL insurance policy with Liberty Mutual, he immediately requested that Ms. Fano and CF&P acquire him a CGL insurance policy that covered him for his work on new residential construction as well as his prior work on new residential construction (with the exception of the Bradford project). (Compl. at 14:18-21.)

Ms. Fano verbally advised Mr. Constantin that a Gemini policy would include the provisions he required, and, based on these representations, Mr. Constantin agreed to purchase the Gemini policy. (Compl. at 15:3-10, 20.)

Plaintiff now alleges that the Gemini policy also excluded coverage for work on certain new residential custom homes. (Compl. at 15:13-14.) The Gemini policy, attached as Exhibit 5 to Plaintiff's complaint, indicates that the policy does not cover new residential construction, and goes on to indicate that custom homes are the exception to the Gemini policy's exclusion on new residential homes. (Compl. Ex. 5.) The policy defines "custom homes" as "'Single-family Home(s)' ... not part of any planned development of 'Single-family Home(s)' or 'Townhome(s)' or any combination of 'Single-family Home(s)' or 'Townhome(s)'." (*Ibid.*)

Plaintiff alleges that he worked on two new custom homes in planned developments while he was covered under the Gemini policy. (Compl. at 16:1-2.) Plaintiff alleges that he is now possibly left exposed to risk because if he is sued for damages or indemnity, Gemini may deny coverage. (*Id.* at 16:3-6.)

As a result of Defendants' conduct, Plaintiff alleges he was injured by the loss of money or property that he paid out in premiums over 25 years for inadequate insurance coverage, as well as costs and

attorney's fees incurred in defending a third-party lawsuit that the insurer refused to defend, potential judgment or settlements amounts, and potential liability exposure for uncovered claims. (Compl. at 20:3-8.) Plaintiff seeks restitution of all money wrongfully obtained by Defendants, disgorgement of all ill-gotten gains, an injunction prohibiting Defendant from engaging in similar conduct with other clients, and attorney's fees for the instant suit as well as for defending against the Bradford action. (*Id.* at 20:12-16.) He also seeks declaratory relief on the basis that an actual controversy now exists between Plaintiff and Defendants as to whether Defendants should be responsible for defending and indemnifying Plaintiff in the Bradford action and/or any other suits that may emerge from Plaintiff's work both before the Gemini policy was in place through the date of its cancellation. (*Id.* at 21:20-24; 22:1-2.)

Plaintiff filed the instant suit on June 26, 2025.

It is the responsibility of the demurring party to meet and confer with the opposing party at least five days prior to the date the responsive pleading is due. (Code of Civ. Proc., § 430.41(a)(2).) After several telephonic meetings to confer over the issues raised in this demurrer, Defendants filed the instant motion on October 20, 2025. Defendant's efforts to meet and confer were adequate under the statute.

II. Legal Standard

"A demurrer tests the sufficiency of the complaint by raising questions of law." (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

The complaint must be "liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc. § 452.) "[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated." (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Whether a plaintiff can actually prove their allegations is of no concern to the court on demurrer. (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) "Where the complaint is defective, '[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...'" (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).)

III. Analysis

A. Second Cause of Action: Negligence as to Gemini Procurement

Plaintiff alleges Defendants were negligent when they procured for him the Gemini CGL policy because it allegedly includes exclusions that expose him to liability for future claims against him for the work he performed during the life of the policy from June 7, 2024, to June 6, 2025. (Compl. at 16:1-18.)

Plaintiff must make a showing of four elements to support a claim for negligence: (1) Defendants had a legal duty of care to Plaintiff; (2) Defendants breached that duty; (3) Plaintiff suffered an injury because of Defendants' breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141.)

i. Duty and Breach

A complaint that lacks facts to show a duty of care was owed is fatally defective; whether duty exists is a question of law for the court. (*Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, 822.)

An insurance agent ordinarily assumes only those duties normally found in an agency relationship – the obligation to use reasonable care, diligence, and judgment in procuring the insurance requested by an insured. (*Jones v. Grewe* (1987) 189 Cal.App.3d 950, 954.) “The mere allegation in a complaint...that an insured has purchased insurance from an insurance agent for several years and followed his advice on certain insurance matters is insufficient to imply the existence of a greater duty.” (*Id.* at 956.) This rule changes, however, when (1) the agent misrepresents the nature, extent or scope of the coverage being offered or provided, (2) there is a request or inquiry by the insured for a particular type or extent of coverage, or (3) the agent assumes an additional duty by either express agreement or by “holding himself out” as having expertise in a given field of insurance being sought by the insured. (*Fitzpatrick v. Hayes* (1997) 57 Cal.App.4th 916, 927.)

Here, Mr. Constantin alleged that he asked for a particular type and extent of coverage. After Liberty Mutual's denial of defense in the Bradford action pursuant to the residential construction exclusion, Mr. Constantin alleged that he specifically asked Ms. Fano and CF&P to procure him a new GCL insurance policy that covered him for both his current and future work on new residential construction and his past work on new residential construction (with the exception of the Bradford project). (Compl. at 14:18-21.) Mr. Constantin alleges that Ms. Fano verbally advised him that a Gemini policy would include the provisions he required. (*Id.* at 15:3-6.) Based on Ms. Fano's representations, Mr. Constantin agreed to purchase the Gemini policy. (*Id.* at 15:20.)

The Gemini policy, while allegedly covering new custom homes, allegedly does not cover custom homes that are part of any planned development. (Compl. Ex. 5.) These allegations are sufficient at the pleading stage to support a claim that Defendants had a duty and breached it. As such, the Court turns to whether Plaintiff has adequately alleged damages arising from the Gemini policy.

ii. Injury and Damages

A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club, supra*, 165 Cal.App.4th at 203.) “[P]laintiff need only plead facts showing that he may be entitled to some relief.” (*Alcorn, supra*, 2 Cal.3d at 496.)

Here, Plaintiff alleges that, while insured under the Gemini policy, he worked on two new custom homes in planned developments. (Compl. at 16:1-2.) Plaintiff alleges that he is “now possibly left exposed to risk because if he is sued for damages or indemnity, Gemini may deny coverage.” (*Id.* at 16:1-6.)

Arguably, these allegations describe future exposure, rather than present, realized injury in that Plaintiff’s complaint does not allege Gemini has denied coverage or that Plaintiff has incurred defense costs or other out-of-pocket losses attributable to the Gemini policy. However, because on demurrer the only issue involved is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action, the Court does not concern itself at this time with whether Plaintiff will ultimately be able to prove these allegations. (*SKF Farms, supra*, 153 Cal.App.3d at 905; *Alcorn, supra*, 2 Cal.3d at 496.) Accordingly, Plaintiff has adequately pled injury and damages, and his allegations are sufficient to support a claim for negligence at this stage.

As such, the demurrer to the second cause of action for negligence as related to the Gemini policy is overruled.

B. Fourth Cause of Action: Business and Professions Code § 17200 – Unfair Business Practices

The Unfair Competition Law (“UCL”) (California Business and Professions Code section 17200) prohibits and provides civil remedies for “any unlawful, unfair or fraudulent business act or practice...” (Bus. & Prof. Code, § 17200.)

Plaintiff’s UCL claim appears to be predicated on (1) Defendants’ alleged failure to procure adequate insurance coverage; and (2) statements on Defendants’ website holding themselves out as having specialized expertise in contractor insurance.

The Court will bifurcate its analysis as to the Plaintiff’s UCL claim to the extent it is based on the two separate policies from Gemini and Liberty Mutual.

i. Gemini Policy

Prevailing plaintiffs in a UCL action are limited to injunctive relief and restitution; they may not receive damages or attorney fees because restitution is the only monetary remedy expressly authorized for violation of the UCL. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179; *Kraus v. Trinity Management Services, Inc.* (2000) 23 Cal.4th 116, 128; Bus. & Prof. Code, § 17203.) Restitution requires that a UCL defendant return money obtained

through an unfair business practice to the party from whom the property was taken. (*Kraus, supra*, 23 Cal.4th at 126-127.) Restitution requires both that money or property has been lost by the plaintiff and that it has been acquired by the defendant. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 336.)

To establish private standing in UCL cases a party must “(1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., *economic injury*, and (2) show that that economic injury was the result of, i.e., *caused by*, the unfair business practice or false advertising that is the gravamen of the claim.” (*Id.* at 322; Bus. & Prof. Code, § 17204.)

Here, as relates to the Gemini policy, Plaintiff alleges he suffered injury through the loss of money or property by way of premiums paid for inadequate insurance coverage, potential judgment(s) or settlement amounts; potential liability exposure for uncovered claims, and other damages and costs.” (Compl. at 20: 3-11.)

To the extent that Plaintiff seeks restitution of “[p]remiums paid for inadequate insurance coverage,” the complaint does not allege that Defendants, who are insurance brokers, not carriers, wrongfully obtained money belonging to Plaintiff in that it fails to allege facts showing that Defendants acquired and retained the insurance premiums. (Compl. at 20:4-5, 12-13.) Absent allegations that Defendants acquired money through an unlawful practice and retain funds properly belonging to Plaintiff, restitution is unavailable. (*Kraus, supra*, 23 Cal.4th at 126-127.)

The rest of Plaintiff’s alleged injuries related to the Gemini policy – potential judgment(s) or settlement amounts, and potential liability exposure for un-covered claims – are likewise out of reach of the UCL as they are neither injunctive nor restitutionary relief. (*Cel-Tech Communications, Inc., supra*, 20 Cal.4th at 179.) Accordingly, Plaintiff has not adequately alleged standing to pursue a UCL claim against Defendants based on the Gemini policy.

ii. Liberty Mutual Policy

a. Fraudulent Conduct

To state a claim under the UCL based on false advertising or promotional practices, a plaintiff must show that members of the public are likely to be deceived. (*Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 951.) Where a UCL claim is based on alleged misrepresentations, a private plaintiff must also plead and ultimately prove actual reliance. (*In re Tobacco II Cases* (2009) 46 Cal.4th 298, 328.) In addition, the statute targets business acts or practices, not isolated private contractual disputes. (Bus. & Prof. Code, § 17200.)

Here, Plaintiff alleges that Defendants’ website held them out as having specialized expertise in contractor insurance and in understanding the unique needs of residential builders. However, generalized promotional statements of expertise and commitment, without more, are insufficient to constitute actionable fraudulent conduct under the UCL. Plaintiff in his complaint does not identify specific misrepresentations likely to deceive a reasonable consumer, nor does Plaintiff allege facts

showing that he relied on any particular website representation in purchasing or renewing the Liberty Mutual policy; such pleading is required to establish standing for a fraud-based UCL claim. (*Kasky, supra*, 27 Cal.4th at 951; *Tobacco II, supra*, 46 Cal.4th at 328.)

The allegations instead describe a dispute concerning procurement and renewal of Plaintiff's individual insurance policies. Absent facts showing a broader business practice affecting consumers or the public, the complaint fails to allege conduct constituting an actionable "business act or practice" within the meaning of section 17200.

b. Relief

Prevailing plaintiffs in a UCL action are limited to injunctive relief and restitution; they may not receive damages or attorney fees because restitution is the only monetary remedy expressly authorized for violation of the UCL. (*Cel-Tech Communications, Inc., supra*, 20 Cal.4th at 179; *Kraus, supra*, 23 Cal.4th at 128; Bus. & Prof. Code, § 17203.) Restitution requires that a UCL defendant return money obtained through an unfair business practice to the party from whom the property was taken. (*Kraus, supra*, 23 Cal.4th at 126-127.) Nonrestitutionary disgorgement of profits is not an available remedy under the UCL. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1148.)

Here, Plaintiff alleges that he incurred defense costs following Liberty Mutual's denial of coverage. However, the UCL authorizes only restitution and injunctive relief, not compensatory damages. (*Cel-Tech Communications, Inc., supra*, 20 Cal.4th at 179; *Kraus, supra*, 23 Cal.4th at 128; Bus. & Prof. Code, § 17203.) Defense costs and other consequential damages are not recoverable under the UCL.

To the extent that Plaintiff seeks restitution of "[p]remiums paid for inadequate insurance coverage," as noted *supra*, the complaint does not allege that Defendants, who are insurance brokers, not carriers, wrongfully obtained money belonging to Plaintiff in that it fails to allege facts showing that Defendants acquired and retained the insurance premiums. (Compl. at 20:4-5, 12-13.) Absent allegations that Defendants acquired money through an unlawful practice and retain funds properly belonging to Plaintiff, restitution is unavailable. (*Kraus, supra*, 23 Cal.4th at 126-127.)

Plaintiff additionally seeks "disgorgement of ill-gotten gains." (Compl. at 20:12-14.) However, nonrestitutionary disgorgement of profits is not an available remedy under the UCL. (*Korea Supply Co., supra*, 29 Cal.4th at 1148.) The UCL authorizes only restitution – the return of money obtained from the plaintiff – and injunctive relief. Disgorgement is only permissible to the extent it constitutes restitution of money wrongfully obtained from the plaintiff. As noted *supra*, the complaint does not allege that Defendants wrongfully obtained money belonging to Plaintiff. Accordingly, Plaintiff's request for disgorgement fails as a matter of law.

Plaintiff also seeks injunctive relief prohibiting Defendants from engaging in similar conduct. (Compl. at 20:12-14.) However, the complaint alleges only past conduct concerning Plaintiff's own insurance policies and does not allege facts demonstrating a real and immediate threat of future harm to Plaintiff sufficient to support injunctive relief.

Accordingly, the demurrer to the fourth cause of action for violation of the UCL is sustained with leave to amend.

C. Fifth Cause of Action: Declaratory Relief

Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another...may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action... He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. ... [T]he declaration shall have the force of a final judgment.

(Code Civ. Proc., § 1060.)

In the context of a demurrer the court evaluates whether the factual allegations of the complaint for declaratory relief reveal that an actual, present, justiciable controversy over a proper subject exists between the parties. (*Otay Land Co. v. Royal Indemnity Co.* (2008) 169 Cal.App.4th 556, 562; *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79 (citation omitted).) Both standing and ripeness are appropriate criteria for determining whether there exists an actual controversy between the parties. (*Otay Land Co. v. Royal Indemnity Co.* (2008) 169 Cal.App.4th 556, 563.)

If on demurrer, facts are alleged that reveal an actual controversy between the parties, the complaint is legally sufficient for declaratory relief and sustaining such a demurrer constitutes error. (*Alameda County Land Use Assn. v. City of Hayward* (1995) 38 Cal.App.4th 1716, 1722.) Pursuant to California Code of Civil Procedure section 1061, however, the trial court has the discretion to determine whether it is “necessary” and “proper” to exercise the power to provide declaratory relief “under all the circumstances.” (Code Civ. Proc., § 1061.)

Here, Plaintiff seeks a judicial determination of the rights, duties, and obligations of the parties as to whether Defendants have an obligation to indemnify and defend Plaintiff for (1) liability arising out of work performed on new residential construction projects (including the Bradford cross-complaint) during the period of time when Plaintiff was insured by Liberty Mutual, (2) liability arising out of work performed on new residential construction projects during the time Plaintiff was insured by Gemini, and (3) liability arising out of any latent defect periods as described by SB 800 and other California latent defect law under either policy. (Compl. at 22:3-10.)

The Court will bifurcate its analysis as to the Plaintiff’s Declaratory Relief claim to the extent it is based on the two separate policies from Gemini and Liberty Mutual.

i. Liability Arising Out of the Gemini Policy

“Facts and not conclusions of law must be pleaded which show a controversy of concrete actuality as

opposed to one which is merely academic or hypothetical.” (*Wilson v. Transit Authority of Sacramento* (1962) 199 Cal.App.2d 716, 722; see also *Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal.3d 158, 170-171.) Declaratory relief does not lie to adjudicate past wrongs or speculative future disputes. (*Wilson, supra*, 199 Cal.App.2d at 722.)

“[T]he declaratory procedure operates prospectively, and not merely for the redress of past wrongs. It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.”

(*Travers v. Loudon* (1967) 254 Cal.App.2d 926, 931.)

Plaintiff alleges only that he is now *possibly* left exposed to liability in the event that Gemini denies coverage on either of the two custom homes he worked on in planned developments while insured by Gemini. (Compl. at 16:1-6.) Such contingent future events do not constitute an actual controversy sufficient to support declaratory relief.

ii. Liability Arising Out of the Liberty Mutual Policy

Declaratory relief is not appropriate to determine issues that are fully encompassed within other causes of action for damages. (*Travers, supra*, 254 Cal.App.2d at 929-931.)

To the extent that Plaintiff seeks a declaration that Defendants are responsible for defense costs arising from Liberty Mutual’s denial of coverage, that issue is fully encompassed within Plaintiff’s first cause of action for negligence arising out of the Liberty Mutual claim. (Compl. at 9-14.) Declaratory relief is improper where it serves no purpose beyond resolving issues already subsumed within other causes of action. (Code Civ. Proc., § 1061; *Travers, supra*, 254 Cal.App.2d at 929-931.) Declaratory relief operates prospectively to declare future rights, not merely to redress past wrongs. (*Wilson, supra*, 199 Cal.App.2d at 722.)

Thus, the demurrer to the fifth cause of action for declaratory relief is sustained with leave to amend.

IV. Conclusion

For the foregoing reasons, the Court overrules Defendants’ demurrer to Plaintiff’s second cause of action for negligence as relates to the Gemini Policy, and it sustains with leave to amend Defendants’ demurrer to Plaintiff’s fourth cause of action for violation of the UCL, and fifth cause of action for declaratory relief.

15. 9:00 AM CASE NUMBER: N23-0655
CASE NAME: PETITION OF: LORNE CLUTE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ROUND HILL COUNTRY CLUB, A CALIFORNIA CORPORATION
TENTATIVE RULING:

Respondent Round Hill Country Club (“Round Hill”) filed a Petition to Confirm Contractual Arbitration Award on October 15, 2025 (the “Petition to Confirm”). The Petition to Confirm was set for hearing on March 9, 2026. No response has been filed.

Background

This matter was initiated by petitioner Lorne Jason Clute’s (“Mr. Clute”) Petition to Appoint Neutral Arbitrator filed March 22, 2023. The arbitration was ordered by the Court’s order entered March 22, 2023 and the subsequent orders regarding the selection of the arbitrator. Ultimately, the Court appointed the Hon. Candace D. Cooper (Ret.) as the arbitrator (the “Arbitrator”).

The arbitration was conducted before the duly appointed Arbitrator. Petition to Confirm, ¶17 and Attachments thereto.

An arbitration award was made by the Arbitrator on October 6, 2025, a copy of which is attached to the Petition to Confirm. After a series of rulings on the sufficiency of the allegations, the Arbitrator entered a judgment in favor of Round Hill and against Mr. Clute. See Order re Motion for Judgment on the Amended Pleadings entered October 6, 2025 (the “Arbitration Award”), Petition to Confirm, Attachments.

Analysis

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate that award. Code Civ. Proc. § 1285; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 3.62. Such petition is a summary proceeding in the manner of and upon the notice provided by law for the making and hearing of motions, except that not less than ten (10) days’ notice of the date set for the hearing on the petition shall be given. Code Civ. Proc. § 1290.2.

If a petition is duly served and filed, the court shall confirm the award as made unless it corrects the award and confirms it as corrected, vacates the award, or dismisses the proceedings. Code Civ. Proc. § 1286. If an award is confirmed, judgment shall be entered in conformity therewith. Code Civ. Proc. § 1287.4. The judgment has the same force and effect as a judgment in a civil action and it may be enforced like any other judgment. *Id.*

Once a party to an arbitration award has filed a petition to confirm, correct or vacate an award, a response must be filed and served within ten (10) days after service of the petition, unless extended. Code Civ. Proc. § 1290.6; see CJER Civ. Pro.—Before Trial, § 3.63.

A response requesting that an award be vacated or that an award be corrected shall be served and filed not later than 100 days after the date of service of a signed copy of the award upon: (a) The respondent if he was a party to the arbitration; or (b) The respondent’s representative if the respondent was not a party to the arbitration. Code Civ. Proc. § 1288.2.

Before confirming an award, a trial court has a duty, in order to follow the dictates of Code of Civil

Procedure section 1283.4, to ensure that the arbitrator's "award" is an "award" within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94; see also Code Civ. Proc. § 1283.4 ("The award shall be in writing and signed by the arbitrators concurring therein. It shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy.").

A Proof of Service of the Petition to Confirm on Mr. Clute was filed October 15, 2025 and notice of the hearing date on the Petition to Confirm was also given. See Notice of Hearing filed October 24, 2025.

Mr. Clute has not filed a response or otherwise sought to correct or vacate the Arbitration Award.

The Court finds that the Arbitration Award was duly made in writing by the Arbitrator and constitutes a determination of all the questions submitted to the Arbitrator, the decision of which was necessary in order to determine the controversy. Accordingly, the Court confirms the Arbitration Award made.

Disposition

The Court finds and orders as follows:

1. The Petition to Confirm is GRANTED and the Arbitration Award is CONFIRMED.
2. Round Hill to submit proposed forms of order and judgment.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C22-02774

CASE NAME: JANE DOE A.M.M. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT

***HEARING ON MOTION FOR DISCOVERY ORDER TO COMPEL CTC'S COMPLIANCE WITH SUBPOENA FOR PRODUCTION OF RECORDS**

FILED BY: DOE A.M.M., JANE

TENTATIVE RULING:

Plaintiff Jane Doe A.M.M. ("Plaintiff") filed a Motion for Order to Compel CTC's Compliance with Subpoena for Production of Records ("Motion to Compel Compliance with Subpoena") on December 4, 2025. The matter was set for hearing on June 29, 2026. By its Order entered January 9, 2026, the Court advanced the hearing date to March 9, 2026. The motion is opposed.

Background

This case stems from allegations that defendant West Contra Costa Unified School District (the "District") is liable, under various theories, for the childhood sexual assault on Plaintiff perpetrated by "a counselor, employee, and agent" of the District (the "Perpetrator").

After an initial effort to secure documents through an informal request and meet and confer process, Plaintiff served third party California Commission on Teacher Credentialing ("CTC") with a subpoena seeking documents relating to the Perpetrator. See Declaration of Amanda J.G. Walbrun ("Walbrun Decl."), ¶¶13-17 and **Exhibit 6** thereto (the "Subpoena").

CTC responded "by producing forty-three (43) pages of significantly redacted documents. *Id.* at ¶¶20-22

and **Exhibits 8-10** thereto. The documents produced were accompanied by a set of objections. *Id.* at **Exhibit 8**.

The parties meet and conferred regarding the scope of production and the asserted objections. *Id.* at ¶24-27.

Opposition papers, including declarations were filed by CTC on February 24, 2026.

A reply was filed March 2, 2026.

Analysis

If a deponent fails to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in a deposition subpoena, the party seeking discovery may move the court for an order compelling that production. Code Civ. Proc. § 2025.480; see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 1.89.

CTC has raised a number of issues regarding the scope of the Subpoena and the nature of the records sought. Each of those issues is addressed in turn below.

Scope of Records Sought

CTC contends Plaintiff "has failed to adequately explain how any of the categories of documents requested are relevant to the litigation at hand or will lead to the discovery of admissible evidence." See Opposition, p. 3.

CTC's arguments are misguided. Plaintiff need not demonstrate that CTC conducted an investigation into the Perpetrator's conduct or that CTC took disciplinary action.

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Investigation into a teacher's or counselor's credentialing history and file in light of the allegations here is most certainly reasonably calculated to lead to the discovery of admissible evidence. Besides the obvious relevance of any history of disciplinary action(s), even apparently mundane circumstances such as the training and background of the person or gaps in maintaining a credential could well be relevant to the issue of wrongdoing by the teacher or counselor. No persuasive showing has been made by CTC that the scope of the production would somehow be unduly burdensome because of the cost or administrative burden of gathering and producing the documents. The Court finds good cause for the production of the subpoenaed records, subject to the further discussion below.

CTC's Objection Nos. 5 and 6 that the Subpoena is overbroad, unduly burdensome, and/or seeks documents that are not relevant or reasonably calculated to lead to the discovery of admissible evidence are **OVERRULED**.

Seeking Records Not Prepared by CTC or Are Asserted to be Equally Available

The Court has considered and rejects CTC's contention that it need not produce records that were not

prepared by CTC employees. The Court has also considered and rejects the contention that the subpoenaing party may be able to obtain the documents through other means. All records in CTC's custody, possession or control are subject to production, regardless of whether it prepared them or not. The showing by CTC fails to establish that the documents are equally available through other means and even if they were, good cause has been demonstrated for their production directly from CTC's files.

CTC's Objection No. 2 that the Subpoena seeks records that are not business records of the CTC and are equally available or in the possession of the subpoenaing party is **OVERRULED**.

Privacy and Other Privileges

CTC objects to the Subpoena to the extent that it seeks disclosure of private information subject to the Information Practices Act ("IPA") and other state law. See Civ. Code § 1798 *et seq.*; see also Ed. Code § 44230. CTC observes that it was not able to disclose records—or at least certain portions of records—containing protected private information given the strictures of the Education Code and the interplay with the IPA. CTC also raises concerns about other privileges, including attorney-client privilege and the official records privilege.

Nothing in these statutes preclude disclosure of subpoenaed records pursuant to a court order. Indeed, the IPA expressly provides for it, as CTC acknowledges. See Civ. Code § 1798.24 ("An agency shall not disclose any personal information in a manner that would link the information disclosed to the individual to whom it pertains unless the information is disclosed, as follows: [¶] (k) To any person pursuant to a subpoena, court order, or other compulsory legal process if, before the disclosure, the agency reasonably attempts to notify the individual to whom the record pertains, and if the notification is not prohibited by law."); see also Ed. Code § 44230(a)(2) ("...no information, other than that set forth in paragraph (1), may be disclosed by the commission absent an order from a court of competent jurisdiction.")

CTC has not shown that plaintiff unreasonably failed to attempt to notify the individual to whom the record pertains in as much as it is undisputed that the Perpetrator is deceased.

While CTC may have had substantial justification in withholding records with information subject to these statutory protections absent a court order, the Court concludes that their production is necessary and appropriate having considered the totality of the circumstances and all of the objections raised by CTC. The Court has weighed the need for the production of the evidence versus the privacy considerations at issue, assuming they survived the alleged Perpetrator's passing.

The Court orders the parties to meet and confer regarding a form of Protective Order to protect against the dissemination of any sensitive private information, including any "personal information" as defined by Civil Code 1798.3, beyond the parties and other appropriate persons in connection with litigation of this matter and encompassing such other protections/limitations as the parties may deem necessary and appropriate to safeguard such information.

The Court denies the motion as relates to the internal communications between CTC staff and CTC legal counsel relating to responding to the original request for records and the Subpoena and sustains the attorney-client and official information privileges with respect to such records. See Opposition, p. 8 ("The documents withheld by CTC on this basis are e-mails from CTC support staff to CTC legal staff regarding the pending Subpoena and Plaintiff's previous requests for information regarding Banducci."); see also Privilege Log produced by CTC. CTC has not shown that any other particular records are properly withheld under any other privilege, including the official information privilege.

CTC's Objection Nos. 1, 3 and 4 that the Subpoena seeks privileged and/or private information are OVERRULED in PART and SUSTAINED in PART, as forth above.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Compliance with Subpoena is GRANTED IN PART and DENIED IN PART, as set forth further above.
2. The parties shall submit for approval the Protective Order referenced above within thirty (30) days of notice of entry of this order.
3. CTC shall make a further response with any and all responsive records in its custody, control or possession, unredacted and subject to the Protective Order, no later than sixty (60) days after notice of entry of this order or thirty (30) days after entry of the final approved Protective Order, whichever is later.
4. The Court shall issue the order after hearing.

Courtroom Clerk's session

17. 10:00 AM CASE NUMBER: MSC20-02384
CASE NAME: WEST CREEK VS PROFRAME
DEFAULT HEARING IN RE: JUDGMENT (CONVERTED FROM TRIAL TO A PROVE-UP HRG PER ORDER FILED 2/19/2026)
FILED BY:
TENTATIVE RULING:

Parties to Appear.

Courtroom Clerk's session
Add On

18. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: NICHOLAS J. CAPLIN**
FILED BY: DUGGAN, MOLLY
TENTATIVE RULING:

Nicholas J. Caplin and the other attorneys of Lubin Pham + Caplin LLP ("Counsel") filed a series of Motions to be Relieved as Counsel on November 7, 2025 (the "Motions to be Relieved as Counsel"). The

motions were set for hearing on April 6, 2026. By the Court's Order issued February 24, 2025, the hearing was advanced to March 9, 2026. Notice was duly given as ordered.

Background

Counsel seeks to be relieved as attorneys for plaintiffs Molly Duggan, Erik Cochran and Gabriella Duggan-Cochran ("Plaintiffs").

The supporting declarations filed by Counsel indicates that there has been an irreparable breakdown in the attorney-client relationship. See Declaration filed November 7, 2025, ¶12. Plaintiffs have been given notice of the Motions to be Relieved as Counsel. *Id.* at ¶13. As noted above, further notice of the new hearing date was given.

Analysis

The Motions to be Relieved as Counsel are unopposed.

Disposition

The Court finds and rules as follows:

1. The Motions to be Relieved as Counsel are GRANTED.
2. The Court shall issue the orders after hearing.
3. Service of the orders on Plaintiffs to be done via email and mail to Plaintiffs' last known address(es).

19. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: NICHOLAS J. CAPLIN**
FILED BY: COCHRAN, ERIK
TENTATIVE RULING:

See LINE 18 above.

20. 9:00 AM CASE NUMBER: MSC21-01664
CASE NAME: DUGGAN VS. BDM ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: NICHOLAS J. CAPLIN**
FILED BY: DUGGAN-COCHRAN, GABRIELLA
TENTATIVE RULING:

See LINE 18 above.